

		he had previously decided these issues and fully explained why his decision in the First Arbitration as to both issues remained undisturbed. (Final Award, pp. 6-7, 10-11.) Respondents have failed to show an inconsistency between the awards in the First Arbitration and the Second Arbitration. Further, the Arbitrator's factual and legal determinations are not reviewable on the merits. (<i>Moshonov v. Walsh</i> (2000) 22 Cal.4th 771, 775 [arbitrators do not exceed powers by rendering erroneous decision on legal or factual issue, so long as issue was within the scope of controversy submitted].) Petitioners to submit a simple, standalone judgment only (no notice of ruling, no attached arbitration award) within 5 days. Petitioners to give notice. Application for Writ of Possession after Hearing The application of Petitioners John E. Pinner and Marilyn M. Pinner, Individually and as Trustees of the Pinner Family Trust, for an order for issuance of writ of possession after hearing against respondents Dirk T. Griffin and Pinner Construction Co. Inc. is DENIED. A writ of possession pursuant to section 512.010 is issued as a provisional remedy and permits a plaintiff to obtain possession of tangible personal property <i>prior to trial</i>. Because the court granted the Petition to Confirm the Arbitration Award, the proper procedure would be post-judgment enforcement. Petitioners to give notice.
9	Collision vs. KRC Santa Margarita, LLC 30-2025-01530542-CU-PO-CJC	Demurrer to First Amended Complaint Continued to 9/18/2026.
10	Nguyen vs. Ma 30-2025-01518657-CU-OR-CJC	Demurrer to First Amended Complaint Defendant Lance Ma's Demurrer to Plaintiff Tuan Nguyen's First Amended Complaint is OVERRULED. The Court GRANTS Defendant's request for judicial notice of the existence of the documents, but not of the truth of their contents.

		<u>First cause of action for partition by sale of real property</u> "An equitable interest is sufficient to support a partition action." (<i>Powers v. Powers</i> (1963) 221 Cal.App.2d 746, 750 [citation omitted].) Plaintiff sufficiently alleges he is entitled to at least half of the property based on equitable title based on an agreement with Decedent to "share everything 50-50" and contributions Plaintiff made to the purchase of the property, mortgage, and improvements. (FAC ¶¶ 11, 19.) <u>Second cause of action for unjust enrichment</u> Plaintiff sufficiently alleges he has an equitable interest in the property and Defendants would be unjustly enriched by retaining all the benefits of ownership of the property. (FAC ¶¶ 11, 19, 25.) <u>Third cause of action for forcible eviction</u> A claim for wrongful eviction requires a showing of two elements: (1) plaintiff's peaceable possession and (2) defendants' forcible entry. (<i>Spinks v. Equity Residential Briarwood Apartments</i> (2009) 171 Cal.App.4th 1004, 1039, 1042.) Plaintiff sufficiently alleges he has an equitable interest in the property and Defendants forcibly and wrongfully evicted him from the property. (FAC ¶¶ 11, 19, 28-31.) <u>Fourth cause of action for intentional infliction of emotional distress</u> Plaintiff alleges sufficient facts to support a cause of action for intentional infliction of emotional distress. (FAC ¶¶ 1, 2, 15, 16.) <u>Fifth cause of action for conversion</u> Plaintiff alleges sufficient facts to support a cause of action for conversion. (FAC ¶¶ 39-42.) <u>Sixth cause of action for declaratory relief</u> Plaintiff sufficiently alleges he has an equitable interest in the property and seeks an order declaring the rights of ownership and obligations of based on that interest. (FAC ¶¶ 11, 19, 45, 46.) <u>Seventh cause of action for right to property based on breach of express contract</u>
--	--	--

		Plaintiff alleges sufficient facts to support a cause of action for right to property based on breach of express contract. (FAC ¶¶ 11, 13, 19, 48-53.) <u>Eighth cause of action for breach of implied contract for reimbursement of mortgage contributions</u> Plaintiff alleges sufficient facts to support a cause of action for breach of implied contract for reimbursement of mortgage contributions. (FAC ¶¶ 11, 13, 19, 55-60.) The Court ORDERS Defendant to file an answer within 5 days. Plaintiff to give notice.
11	DI Overnite Investments, LLC vs. Nabal 30-2024-01393386-CU-BT-CJC	Demurrer to First Amended Cross-Complaint The (Amended) Demurrer to FACC of Cross-Defendants DI Overnite Investments, LLC, Renaissance Ventures, LLC, Joseph Varraveto, and Douglas Garamoni, is OVERRULED. <u>First Cause of Action – Fraud:</u> The FACC adequately alleges Cross-Defendants made false accusations against Cross-Complainant which were part of a scheme to coerce the majority of voting rights-holders to vote to terminate Cross-Complainant. (FACC, ¶ 17.) This is adequate to allege fraud. <u>Second Cause of Action – Declaratory Relief (incorrectly labeled third cause of action on p. 12):</u> The FACC adequately alleges a controversy regarding whether the termination/removal of Cross-Complainant as CEO and related acts were lawful or void. (FACC, ¶¶ 40.) <u>Third Cause of Action – Civil Extortion against DI Overnite Investments LLC, Joe Varraveto, and Douglas M. Garmoni only:</u> “Extortion is the obtaining of property or other consideration from another, with his or her consent, or the obtaining of an official act of a public officer, induced by a wrongful use of force or fear, or under color of official right.” (Pen. Code, § 518, subd. (a).) “Fear, such as will constitute extortion, may be induced by a threat of any of the following: 1. To do an unlawful injury to the person or property of the individual threatened or of a third person.